

25STCV11792 25STCV11792

County: los-angeles

Division: Civil Law and Motion

Department: 11

Hearing date: 2026-08-25

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Case Number: 25STCV11792 Hearing Date: August 25, 2026 Dept: 11

Lekocevic (25STCV11792)

Tentative

Ruling Re: Motion to Compel Arbitration

Date: 8/25/26

Time: 11:00 am

Moving Party: TriNet HR

III, Inc. ("TriNet" or "Defendant")

Opposing Party: Anton Lekocevic ("Plaintiff")

Department: 11

Judge: Bruce G.

Iwasaki

TENTATIVE RULING

Plaintiff's class action

(25STCV11792) is stayed pending completion of arbitration in Plaintiff's individual action (24STCV19758).

BACKGROUND

TriNet is a company that provides administrative services – e.g., onboarding, payroll processing, and other human resources – to client businesses. One of TriNet's clients is named Genius Group USA, Inc. ("Genius"). Plaintiff used to work for Genuis, but he alleges that TriNet employed him.

Plaintiff filed two cases against TriNet. The first (24STCV19758) is an individual action pending in Department 73 in front of Judge Gary D. Roberts. The individual complaint asserts causes of action for failure to reimburse business expenses, violation of California's Warn Act, unjust enrichment, failure to provide accurate itemized wage statements, violation of Labor Code sections 204 and 210, waiting-time penalties, and violation of the Unfair Competition Law ("UCL"). (See Complaint (24STCV19758), ¶¶ 20-63.)

TriNet moved to compel arbitration in the individual action. Judge Roberts granted the motion to compel, though he severed the agreement's class waiver. (See Dogra Decl., Ex. A [attaching Judge Roberts's April 23, 2025 order].)

The second case – i.e., the instant case (25STCV11792) – is an alleged class action. The class complaint asserts the same or similar wage-and-hour claims: failure to reimburse business expenses; violation of the Warn Act; unjust enrichment; violation of Labor Code sections 204 and 210; failure to timely pay final wages at separation; failure to provide accurate itemized wage statements; and violation of the UCL. (See Complaint (25STCV11792), ¶¶ 31-70.)

Here, TriNet moves to compel arbitration in the class action.

DISCUSSION

It is uncontested that an agreement to arbitrate exists and that the Federal Arbitration Act ("FAA") governs.

Nevertheless, Plaintiff contends the motion to compel should be denied because (1) Judge Roberts already found that the class waiver is unenforceable (Plaintiff invokes issue preclusion), (2) Defendant waived the right to compel

arbitration, and (3) Defendant's request to strike the class claims is premature.

Issue Preclusion

Plaintiff attempts to utilize issue preclusion to bar Defendant from relying on the class waiver to strike the class claims. (See Opposition, pp. 2-3.)

Assuming arguendo that issue preclusion applies, it applies both ways. The individual action and the class action involve the same Plaintiff, the same Defendant, the same arbitration agreement, and the same or similar claims. Judge Roberts compelled Plaintiff's individual claims to arbitration. (See Dogra Decl., Ex. A, p. 14.) Presumably, that ruling is entitled to just as much preclusive effect as his ruling concerning the class waiver allegedly is.

In light of Judge Roberts's holding,

the Court finds that this class case should be stayed until the arbitration already ordered is completed. Plaintiff cannot

file a class action to avoid the obligation to go to arbitration. Nor may Plaintiff dictate which proceeding goes first. (See, e.g., 1/28/26 Status

Report (24STCV19758), p. 2 [Plaintiff unilaterally declaring that he "intends to

complete arbitration of his claims after his class action . . . concludes"].) The individual case is first in time. Judge Roberts's ruling and the filing of the

class action were nearly simultaneous (one day apart). The Court believes it is important for the

arbitration to be resolved before the class case goes forward not only to honor

the individual action's place at the front of the line but also because the

adjudication of Plaintiff's individual claims may impact class issues, especially,

standing, typicality, and adequacy. A

stay will help to avoid inconsistent results.

The decision on the issue-preclusion issue

is deferred. Plaintiff may reraise the

issue after the arbitration is done and after the stay on proceedings involving

the class claims is lifted.

Waiver

Plaintiff claims Defendant waived the

right to compel arbitration in the class case.

(See Opposition, pp. 3-5 [arguing that Defendant filed a status

report stating that it would not move to compel arbitration, participated in

discovery prior to moving to compel, and made a bad-faith settlement offer].)

The Court disagrees. Plaintiff's argument ignores the fact that Defendant moved to compel arbitration in the individual action. Defendant prevailed in that motion. Defendant's conduct there was entirely consistent with enforcing the agreement to arbitrate and is inconsistent with waiver. Defendant had to file a second motion to compel in the class case because Plaintiff delayed and tried to circumvent the arbitration order.

Class Claims

Like the issue-preclusion issue, the issue of whether to strike the class claims is deferred.

Conclusion

The class claims in this action are stayed pending arbitration of Plaintiff's individual claims. The parties shall notify this court when the arbitration is completed and schedule a status conference. The parties shall file a joint report seven days before the status conference.